CLASSIFIED AND NON-CERTIFIED STAFF HANDBOOK
USD #325 PHILLIPSBURG

www.usd325.com

MISSION STATEMENT

The Mission of U.S.D. #325 public schools is to provide positive school experiences and healthy school environments, which prepare students for successful and productive adult lives. We believe this may best be accomplished by cooperation between our schools, students, parents, and the communities we serve.

Equal Opportunity Employer

The district is an equal opportunity employer and shall not discriminate in its employment practices and policies with respect to hiring, compensation, terms, conditions, or privileges of employment because of an individual's race, color, religion, sex, age, disability or national origin.

The board shall hire employees on the basis of ability and the district's needs.

- This handbook is not an employee contract. Further, this handbook is not to be considered as either an express or implied contract between the school district and the employee. No employee has the authority to create an employee contract by modification of this document.
- Any time the superintendent is mentioned in this manual, his/her designee is implied.
- As a condition of employment, employees agree to follow rules and regulations.
- This handbook may be changed or modified and items added or deleted at any time as recommended by the superintendent and approved by the board.
- Classified employees are employees-at-will and employment may be terminated at any time, with or without cause. Classified employees pursuant to a written contract may still be employees-at-will in accordance with the written contract and employment may be terminated as provided in the written contract.

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1. BENEFITS AND COMPENSATION

Leaves and Absences

The employee will be granted such leave as approved by application of Board Policy. Should the employee be required to be absent from work for reasons other than those approved in Board Policy, the employee will have a deduction made from the next paycheck equivalent to the regular rate of compensation for the position, comparable to the time lost. The employee shall notify the building principal and/or Superintendent when time off for other than approved reasons is requested.

Bereavement Leave

Non-certified personnel working a minimum of 20 hours per week may receive four (4) days bereavement leave as the result of death in the immediate family. Such leave is not accumulative from year to year. Such leave will be with full pay. Other non-certified employees will be granted such leave under the Personal Leave section.

Personal Leave

Each classified hourly employee working at least 3 hours a day and having completed five (5) consecutive years of service in the District shall be credited with one (1) day of paid personal leave at the beginning of each fiscal year thereafter, which shall not be cumulative. After completion of ten (10) consecutive years of service in the District hourly employee will be credited with two (2) days of paid personal leave at the beginning of each fiscal year thereafter, which shall not be cumulative. This leave may be used as the employee sees fit and must be used within the current school year. No carry-over will be allowed. The employee shall request such leave from the Principal at least five (5) days prior to the leave, using the district leave request form.

No more than two personal leave requests will be granted from any one building at any one time, except in the case of extreme emergency, in which case the five days' notification may be waived. Emergency will be defined as personal or family concern, described to the superintendent without requiring a violation of an individual's confidentiality. Any leave granted the last two weeks of school would be subject to full disclosure and superintendent approval.

Additional days may be granted as approved by the Superintendent, but will be without pay.

(Approved by BOE 6/12/2006)

Sick Leave

The sick leave benefits are different for different categories of non-certificated staff. Custodians: 1 day for each 20 days worked, not to exceed 12 days per year, or accumulated time of 60 days; full-year secretaries: 10 days per year, accumulative to 60; attendance center secretaries: 9 days per year, accumulative to 50; teacher aides: 8 days per year, accumulative to 45; cooks/lunchroom personnel: (employees working a minimum of 3 hours per day) will receive 7 days per year, accumulative to 35. Bus Drivers will receive 5 days per year, accumulative to 20.

In cases of sick leave, a doctor's statement may be required and must be provided by the classified staff upon request of the Superintendent or Board of Education, after three (3) consecutive days of sick leave.

Sick Leave Reserve

Non-certified staff that are employed for 52 weeks per year and work 40 hours per week are classified as full-time employees. At the beginning of each year, a sick leave reserve not to exceed 30 days will be available for such staff to apply to. Any non-certified full-time employee may apply, in writing, to draw upon the reserve in the event that he/she has used all earned sick leave and paid vacation leave available to them. The written application will be made to the Superintendent. It will include reasons and documentation for the request. In extreme situations, the employee may apply after the fact of lost time for personal illness and the request may be considered retroactively. In that case the application must be limited to emergency situations such as prolonged illness or serious illness or injury. The reserve leave will be totally under the control of the Board and administrated by its agent. No leave time from this reserve will be granted for other than employee illness. The Superintendent will notify the applicant in writing regarding the action taken on the request, and such decision will be final. When the 30 days are exhausted during any one year, no additional days will be granted, except as the Board may voluntarily grant.

Each participant who is awarded days from the reserve will pay the days back at a rate of no less than two days per year during the first year of payback, and no less than 3 days per year during succeeding years until the total award has been paid back. The employee may elect to pay back days at a higher rate. If an employee leaves the district prior to full payback, the employee may repay any balance due with any unused sick days they might have remaining instead of a reduction in pay upon resignation. The Board may withhold an amount equal to the employee daily wage for each day not paid back if the employee has no remaining unused sick leave to draw from. Exceptions to this policy may be granted by the Board. *(Approved by BOE 12/08/03)*

Family and Medical Leave

Family and medical leave shall be granted for a period of not more than 12 weeks during a 12-month period. The 12-month period is defined as the 12-month period measured forward from the date of your first FMLA leave usage. Spouses who are eligible for FLMA leave and are both employed by the district may be limited to a combined total of 12 weeks of leave during any 12-month period if the leave is taken for the birth of the employee's son or daughter or to care for the child after birth, for placement of a son or daughter with the employee for adoption or foster care or to care for the child after placement, or to care for the employee's parent with a serious health condition.

Leave is available because of:

* the birth of a child of the employee and to care for him/her; the placement of a child with the employee for adoption or foster care; the need to care for a spouse, child or parent of the employee because of a serious health condition; or a serious health condition of the employee that prevents the employee from performing the job functions. (Leave must be taken within 12 months of birth or placement.)

The leave shall normally be unpaid leave. If the employee has any paid vacation, personal, sick or disability leave that is available for use because of the reason for the leave, the paid leave shall be used first and counted toward the annual family and medical leave. The employee is eligible for family and medical leave upon completion of 12 months of service in the district and employed at least 1250 hours during the preceding year.

During the period of any unpaid family and medical leave the board shall continue to pay the employer's share of the cost of group health benefits in the same manner as paid immediately prior to leave. Any employee portion of the cost shall be paid by the employee to the clerk of the board on or before the payroll date or at another time as the employee and superintendent may agree. The board may terminate group health coverage if the employee payment is not received within 30 days of the due date.

Upon the employee providing notice of need for leave, the employer will notify the employee of:

* the reasons that leave will count as family and medical leave; any requirements for medical certification; employer requirement of substituting paid leave; requirements for premium payments for health benefits and employee responsibility for repayment if employer pays employee share; right to be restored to same or equivalent job; and any employer required fitness-for-duty certification.

Family leave (first 2 reasons) may not be used intermittently or on a part-time basis without the prior approval of the superintendent.

The superintendent may require an instructional employee to continue leave until the end of the semester if the leave begins more than five (5) weeks before the end of a semester, lasts more than three (3) weeks and the return would occur during the last three (3) weeks of the semester.

If the leave is for a reason other than the employee's serious health conditions, the superintendent may require an instructional employee to continue leave until the end of a semester if:

* the leave begins in the last five (5) weeks of a semester, will last more than two (2) weeks and the return to work would occur in the last two (2) weeks of a semester; or the leave begins in the last three (3) weeks of a semester, and lasts more than five (5) days.

Duty Lunches

In some cases, lunches from the hot lunch program may be provided as a part of the compensation provided by the district for staff assigned to duties related to the lunch program. The established price of the lunch will be added to the employee's regular monthly compensation, which causes the lunch to be treated as income. The same amount will be deducted so that actual compensation will equal the original sum. This will ensure deduction for social security, which the employee has to pay on the value of the lunches.

Vacation

Vacation benefits vary by position. Unused vacation will be forfeited at resignation/termination.

Full-time Custodians: Following the first year of service, they will receive six (6) days of vacation. Following the second full year of service, they will receive 10 days. Following the fifth consecutive year of service, they will receive 12 days of vacation. For head custodians, they will receive 15 days of vacation following the fifth consecutive year of service. In addition to vacation, full-time custodians will have the following days free of duty except for maintaining adequate heat for the building: Labor Day, Two days at Thanksgiving, Two days at Christmas, New Year's Day, Good Friday, Memorial Day and Fourth of July.

Full-time non-certified staff other than custodians: In order to be eligible for annual vacation, the employee must be on a yearly work schedule. The Clerk, Assistant Clerk and others designated by the Board are in this category. They will receive six (6) days of vacation for the first year and starting with the second year, they will receive ten (10) days of vacation per year. Starting with the fifth year of continuous service, they will receive fifteen (15) days of vacation.

Certain full-time employees such as custodians and central office personnel have a defined set of holidays granted. Sometimes holidays come on either Saturday or Sunday. These employees will be excused from work on Friday, if the holiday is on Saturday and Monday, if the holiday is on Sunday. This will apply only if school is not in session on the Friday or Monday.

Activity Passes

The board may provide each classified employee with a pass to district-sponsored activities with the exception of specified athletic tournaments and KSHSAA events. The pass will be valid for the employee and family only. One FAMILY pass will be issued, with children accompanied by parents.

Loyalty Oath

As required by current law, all employees must sign a loyalty oath and file the oath with the clerk before beginning employment and to be eligible for a paycheck.

Reimbursement/Travel Expense

The board shall provide reimbursement for expenses incurred in travel related to the performance and duties of the district's employees when approved in advance by the superintendent.

Requests for reimbursement shall have the following attached: receipts for transportation, parking, hotels or motels, meals, and other expenses for which receipts are ordinarily available.

For the authorized use of a personal car, including approved travel between buildings, staff members shall be reimbursed at a mileage rate established by the board.

Salary Reduction Plan

Classified employees may participate in a district salary reduction plan. The board may change, add or delete benefit options included in the plan.

A participant may elect to terminate his/her Payroll Reduction Agreement or modify the benefits elected only if his/her family status has changed. A participant has a change in family status upon marriage, divorce, death of a spouse or child, birth or adoption of a child, or termination of employment of a spouse. The participant shall supply written verification to the district of such change and must make any termination or election changes within thirty (30) days of the date of such change in family status. A participant desiring to make such change may discontinue participation or reduce benefits or elect new or increased benefits subject to the requirements of the particular nontaxable benefit selected and consistent with the change in family status.

Kansas Public Employees Retirement System

Employees who meet the qualifications for the Kansas Public Employees Retirement System must become a member. An employee contribution as determined by current law will be made each pay date.

Requests for information or questions about procedures should be directed to the central office at (785) 543-5281.

Retirement

A classified hourly employee working at least 3 hours a day and retiring from the District who has been employed by the District for at least twenty (20) consecutive years and has a minimum of 85 points based on KPERS retirement calculations will be paid at the rate of twenty ($50) dollars for each day of accumulated full pay sick leave upon retirement of the employee (*****not to exceed the maximum accumulated days allowed for the individuals position**). Each person shall give written notice of his or her intention to retire on or before April 1 of the current school year in order to receive this payment. Resignation for any reason other than retirement before the end of the school year will cancel payment of accumulative sick leave. The district will contribute compensation due into a Special Pay 403(b) Employer Paid Retirement Plan with American Fidelity in the retiree's account within 60 days following last day worked.

*** Custodians – may accumulate 60 days
Head Secretaries – may accumulate 50 days
9 month employees – may accumulate 45 days
Kitchen staff working minimum of 3 hours a day – may accumulate 35 days
(Approved by BOE 6/12/2006)

Workers Compensation

Notice of Accidents

Employees must notify the employer within twenty (20) days of an accident or the claim may be barred. Additional information about your rights and responsibilities under workers compensation may be obtained from your supervisor or the district office.

Coverage

Benefits are for personal injury from accident or occupational disease arising out of, and in the course of, employment with the district. Injuries which occur during recreational or social events under circumstances where the employee is under no duty to attend, and where the injury did not result from the performance of tasks related to normal job duties are not covered under workers compensation.

Any employee who is off work and drawing workers compensation shall be required to provide the clerk of the board with a written doctor's release before the employee is allowed to return to work. In addition, should the employee be released to return to work by a doctor and fail to do so, all benefits under sick leave shall be ended and those benefits under workers compensation shall be restricted as provided by current statute.

Coordination with Leave Benefits

The workers compensation plan will provide coverage for medical expenses and wages to the extent required by statute to those employees who qualify. Whenever an employee is absent from work and is receiving workers compensation benefits due to a work-related injury or is receiving district paid disability insurance, the employee may use available paid sick leave to supplement the workers compensation or district paid disability insurance payments.

In no event shall the employee be entitled to a combination of workers compensation benefits and salary in excess of his/her full salary. Available paid sick leave may be used for this purpose until 1) available paid sick leave benefits are exhausted; 2) the employee returns to work; or 3) employment is terminated. Sick leave shall be deducted on a prorata amount equal to the percentage of salary paid by the district.

Unemployment Compensation
For answers to questions regarding unemployment insurance policies, benefits and claims see your personnel representative or contact the nearest Department of Human Resources, District Job Insurance Office.

2. SCHEDULES

Work Schedule
Time schedules for classified employees will be assigned by the superintendent or designee.

The normal work week for classified personnel shall consist of 40 hours per week for full-time employment.

Overtime
There shall be no overtime worked unless approved in advance by the superintendent or principal. All overtime will be paid at the rate required by current law. All approved overtime shall be recorded on the employee's time card. Overtime pay is paid for hours actually worked in excess of 40 hours. Paid leave shall not be considered as hours worked.

Overtime payments will be made under the following conditions:

- When approved in advance;
- When there is an emergency situation and an administrator cannot be notified.
- When the request for overtime is submitted on a time sheet and approved by the principal or Superintendent.

Time Sheets
Time sheets are required for all hourly employees and must be signed by the employee.

The time cards shall be reviewed and approved by the building administrator on a regular basis. The employee will note all days off for holidays, sick leave, vacation or other time off, for whatever reason.

Breaks
All classified personnel are allowed a break if their regular daily schedule calls for four hours or more of continuous work. Breaks are limited to 15 minutes in length and may not be accumulated or added to lunch or dinner hours. Breaks for meal times, if allowed, shall be scheduled by the supervisor.

Payroll Procedure
As a matter of Board Policy, employees are to be paid on or about the 15th of each month, but not later than the 20th. Employees report at varying times for the first time under individual work agreements. Due to this fact, it is difficult to establish a payroll date which does not involve partial monthly payments. Beginning July 1, 2002, hourly employees will be paid strictly from time cards. Each month, employees will be paid for the prior month's actual hours recorded on the time card, turned in to the building principal for approval and forwarded to the central office payroll department. (Example: August hours will be paid on the September payroll; May hours will be paid on the June payroll) Only actual hours on duty should be recorded on the time card. All leave should be recorded as such on the time card.

Employees who elect to have health, dental, or other premiums withheld from their paycheck will have the premiums for months paychecks are not received withheld during the months checks are received. The total amount of elective premiums will be divided by the number of months checks that will be received. That additional amount will be withheld and held in escrow until the month the premium is due. If for any reason the employee paycheck does not cover the monthly required withholding, the employee will be responsible to leave payment for summer premiums with the central office before leaving for the summer. If payment is not received in a timely manner, the particular insurance will be dropped due to non-payment. The district will not be responsible for payment of any individual employee's elective premiums if reimbursement is not received prior to the due date.

3. CONDUCT

Prohibited Substances

Drug Free Schools and Communities Act/Drug Free Workplace

The unlawful possession, use, or distribution of illicit drugs and alcohol by school employees on school premises or as a part of any school activity is prohibited.

As a condition of employment in the district, employees shall abide by the terms of the board policy on drug free schools/workplace. Employees shall not unlawfully manufacture, distribute, dispense, sell, possess or use controlled substances in the workplace. Any employee who is convicted under a criminal drug statute for a violation occurring at the workplace must notify the superintendent of the conviction within five days after the conviction.

Within 30 days after the notice of conviction is received, the school district will take appropriate action with the employee. Such action may include the initiation of termination proceedings. Alternatively, or in addition to any action short of termination, the employee may be required to participate satisfactorily in an approved drug abuse assistance or rehabilitation program as a condition of continued employment. The employee shall bear the cost of participation in such program. This is intended to implement the requirements of the federal regulations promulgated under the Drug Free workplace Act of 1988, 34 CFR Part 85, Subpart F. It is not intended to supplant or otherwise diminish personnel disciplinary actions which may be taken under existing board policies or the negotiated agreement.

Tobacco-Free School Grounds for Staff

The use, possession, or promotion of any tobacco product by staff members is prohibited at all times in any district facility; in school vehicles; at school-sponsored activities, programs, or events; and on school owned or operated property.

The following definitions apply to this policy.

"Tobacco product" means any product that is made from or derived from tobacco, or that contains nicotine, that is intended for human consumption or is likely to be consumed, whether smoked, heated, chewed, absorbed, dissolved, inhaled, or ingested by any other means, including, but not limited to, electronic nicotine delivery system (hereafter "ENDS"), cigarettes, cigars, pipe tobacco, chewing tobacco, snuff, or snus. Tobacco product also means any component or accessory used in the consumption of a tobacco product, such as filters, rolling papers, pipes,

charging devices, cartridges, and any substance used in ENDS, whether or not they contain nicotine. This definition does not include FDA-approved nicotine replacement therapies including transdermal nicotine patches, nicotine gum, and nicotine lozenges prescribed to the employee by a medical practitioner or obtained over the counter and used in accordance with label requirements.

"Electronic nicotine delivery system" or "(ENDS)" means any device that delivers a vaporized solution (including nicotine, THC, or any other substance) by means of cartridges or other chemical delivery systems. Such definition shall include, but may not be limited to, any electronic cigarette, vape pen, hookah pen, cigar, cigarillo, pipe, or personal vaporizer. ENDS are not FDA-approved nicotine replacement therapy devices.

"Promotion" includes, but is not limited to, product advertising via branded gear, bags, clothing, any personal articles, signs, structures, vehicles, flyers, or any other materials.

Relations with Students

Employees shall maintain relationships with students which are conducive to an effective educational environment. Employees shall not have any interaction of a sexual nature with any student at any time regardless of the student's age or status.

Employee Protection

An employee may use reasonable force necessary to ward off an attack, to protect a student or another person, or to quell a disturbance which threatens physical injury to others.

Confidentiality

Student Information

Confidential student information, whether written or oral, shall be handled in a confidential manner and be discussed only with the parents/guardians of the particular student and the appropriate school personnel. Violations of this rule, which violate the privacy rights of students, could result in disciplinary actions being taken against the employee, including termination.

Personnel Information

Confidential personnel information, whether written or oral, shall be handled in a confidential manner and be discussed only with the appropriate school personnel. Violations of this rule, which violate the privacy rights of personnel, could result in disciplinary actions being taken against the employee, including termination.

Sexual Harassment

Sexual harassment will not be tolerated in the school district. Sexual harassment of employees or students of the district by board members, administrators, certificated and classified personnel, students, vendors, and any others having business or other contact with the school district is strictly prohibited.

Sexual harassment shall include, but not be limited to, unwelcome sexual advances, requests for sexual favors, and other verbal or physical conduct of a sexual nature when:

- submission to such conduct is made either explicitly or implicitly a term or condition of an individual's employment;
- submission to or rejection of such conduct by an individual is used as the basis for employment decisions affecting such individual; or

- such conduct has the purpose or effect of unreasonably interfering with an individual's work performance or creating an intimidating, hostile or offensive working environment.

No district employee shall sexually harass, be sexually harassed, or fail to investigate or refer a complaint of sexual harassment for investigation. Complaints of sexual harassment by employees will be promptly investigated and resolved. Initiation of a complaint of sexual harassment will not adversely affect the job security or status of an employee, nor will it affect his or her compensation or work assignment. Violation of district policy shall result in disciplinary action, up to and including termination.

Employees who believe they have been subjected to sexual harassment should discuss the problem with their immediate supervisor. If an employee's immediate supervisor is the alleged harasser, or if the employee is uncomfortable discussing the issue with his/her supervisor, the employee should discuss the problem with the principal or the superintendent.

Employees who do not believe the matter is appropriately resolved may file a written complaint under the district's discrimination complaint procedure. Confidentiality shall be maintained throughout the complaint procedure.

Gifts

Unless approved by the principal, employees shall not give gifts to any student or class of students when the gifts arise out of a class or school-related activity.

Employees are prohibited from receiving gifts from vendors or sales representatives. Premiums resulting from sales projects sponsored by the district shall become the property of the district. All other premiums, price reductions, and additional merchandise awarded based on district business shall become the property of the district.

Solicitations of Employees

Unless permission is granted by the appropriate supervisor, solicitation of employees by any vendor, student, other school district employee or patron during normal duty hours is prohibited.

Solicitations by Employees

No employee will attempt, during the school day or on school property, to sell or endeavor to influence any student or school employee to buy any product, article, instrument, service or other items that may directly or indirectly benefit the school employee.

No employee will engage in sales or solicitation on behalf of the school or use the school name without the prior approval of the principal.

Dress Code

The board encourages appropriate dress for all district employees.

Conflict of Interest

District employees are prohibited from engaging in any activity that may conflict with or detract from the effective performance of their duties.

Outside Employment

Classified employees shall not engage in outside employment that impairs the effectiveness of their service.

Criminal Convictions
Any employee convicted of a felony or driving under the influence, or who enters a plea of guilty or diversion agreement, must notify the superintendent within five days after the conviction or diversion agreement.

Suspension
The superintendent shall have the authority to suspend classified employees with pay until the suspension is resolved by board action. The board may suspend with or without pay for a period determined by the board.

Termination
The board may terminate a classified employee at any time, with or without cause.

4. DISTRICT PROCEDURES

Assignment and Transfer
The board retains the right to assign, reassign, and transfer classified personnel.

Board Policy
Employees shall follow and be familiar with all policies and regulations established by the board of education.

Complaints/Grievances
Any employee may file a complaint with their supervisor concerning a school rule, regulation, policy or decision that affects the employee.

The complaint shall be in writing; filed within ten (10) days following the event complained of and shall specify the basis of the complaint. The supervisor shall meet with the employee and provide a written response within ten (10) days. If the employee disagrees with the decision, the employee may appeal to the superintendent. The superintendent's decision shall be final.

Contracts
Any written contract shall contain a reference that the contract is an employment-at-will contract which may be terminated by either party by giving written notice to the other. There are no rights of continuing employment.

Discrimination Complaints
Discrimination against any individual on the basis of race, color, national origin, sex, disability, age, or religion in the admission or access to, or treatment or employment in the district's programs and activities is prohibited. Kent Otte, 785-543-5281, has been designated to coordinate compliance with nondiscrimination requirements contained in Title VI of the Civil Rights Act of 1964, Title IX of the Education Amendments of 1972, Section 504 of the Rehabilitation Act of 1973, and The Americans with Disabilities Act of 1990.

Complaints of discrimination should be addressed to an employee's supervisor or to the compliance coordinator. Complaints of discrimination against the superintendent should be addressed to the board of education or compliance coordinator.

Complaints of discrimination will be resolved using the district's discrimination complaint procedure.

Drug and Alcohol Testing
All district employees performing job functions, which require the employee to maintain a commercial driver's license shall be tested for alcohol and drugs as required by current federal law. Board approved rules and regulations necessary to implement the testing program shall be on file with the clerk.

Each new employee who is required to undergo alcohol and drug testing shall be given a copy of the appropriate regulations.

Compliance with the required elements of the testing program is a condition of employment as a driver in the district.

Supervision
The superintendent has the responsibility to supervise all classified employees not directly under the supervision of a building principal. A building principal has the responsibility to supervise all classified staff that is assigned to the building.

Job Description
A job description for each category of classified employee will be developed by the superintendent. A copy of each job description is filed with the clerk and will be available for inspection during regular office hours.

Employment Status
All classified employees are employed on an "at-will" basis, regardless of their length of service, and may be dismissed at any time.

Jury Duty
An employee called to jury duty may be paid regular school wages if the employee endorses all jury duty pay, except reimbursement for mileage and subsistence, over to the district.

Distribution of Materials
Materials from sources outside of the district may not be distributed on school grounds without prior permission from the principal. Examples of outside materials include, but are not limited to, political materials, special interest materials, and advertisements.

The principal shall determine the time, place and manner for materials distribution.

Orientation
All new classified employees shall receive an orientation as designed by the supervisor and shall be given a copy of this handbook.

Personal Property
The district is not responsible for employees' personal property and does not provide insurance on employees' personal property. If an employee's personal property is broken, damaged or stolen while the employee is on the job, repair or replacement is the employee's responsibility.

Use of Personal Vehicle

With prior approval of the administration, classified employees may use their private vehicle to perform district business.

Any employee who plans to transport students in his or her personal vehicle must provide proof of adequate insurance and a valid driver's license to the principal prior to transporting students.

Weapons
Employees are prohibited from carrying weapons on school property or at school sponsored events, unless approved in advance and in writing by the superintendent.

Recruitment
The superintendent will recruit personnel to fill existing or proposed vacancies and recommend the board hire the most qualified candidate.

Interrogation and Investigation of Students
No one may interrogate or investigate a student on school grounds without the permission of the principal.

Searches of Students and Property
If a classified staff member believes there is a need to search a student or property, he/she shall contact the principal.

Searches of students or property shall be conducted in accordance with the rules approved by the board. Classified personnel shall not search students or property. No law enforcement officer shall search students or property without a search warrant.

Building principals are authorized to search students or property if there is reasonable suspicion that district policies, rules or directives are being violated. All searches by the principal shall be carried out in the presence of another adult witness.

Resignations
Classified employees may resign from their jobs in accordance with the employment agreement and board policies.

Exit Interviews
An exit interview may be conducted prior to an employee leaving the district.

Staff Development
All plans for staff development involving expenditure of district funds, or which require time away from the employee's assigned responsibilities shall be approved in advance by the superintendent.

Telephone Use
District telephones are for school business. Use of phones for personal business should be avoided except in case of an emergency. Use of phones for social calls is not permitted. Long distance calls made in an emergency must be recorded and reported to the employee's immediate supervisor so arrangements may be made to bill the employee.

5. RECORDS

Personnel Records
Personnel files maintained by the district shall be confidential and in the custody of the appropriate supervisor and/or the superintendent. Employees have the right to inspect their files during regular business hours upon proper notice and under the supervision of an administrator.

Required Records
Each classified employee must have the following records/forms on file with the director of personnel before the first day of employment:

- employment application;
- KPERS enrollment form (if employee is eligible);
- W-4 withholding certificate;
- social security number;
- loyalty oath or affirmation;
- health form (if working directly with students),
- driver's license and driving record (if required for position)
- INS form (proof of identity).

Address Changes
All address changes must be made with the clerk before the end of the pay period in which the changes took place.

Driving Records
It shall be the responsibility of all school bus drivers to annually provide documentation to the superintendent (and the leasing company if the district leases buses) of the validity of license certification by the Kansas Department of Revenue. If a school bus driver's license is suspended or revoked at any time, such suspension or revocation shall be immediately reported to the superintendent and the driver shall cease driving a school bus until the license is restored.

6. REPORTS

Accidents
Any school employee who discovers an accident on school property shall report the accident to the building principal or designated representative.

If the person requires medical treatment, the employee shall:

- send for medical help;
- make the individual as comfortable as possible while waiting for competent medical assistance to arrive; and
- notify the principal or designated representative.

If an employee present is qualified to administer first aid, that aid may be given. If an employee is injured on the job, the supervisor should be contacted immediately and a report shall be made within ten days. The supervisor will then be responsible for contacting the district central office, which will in turn supply the injured employee with the appropriate forms to complete.

The employee must keep copies of all doctor's orders and provide a file copy to the district central office. The employee must inform the doctor or hospital that he/she is covered by the district workers compensation plan.

Child Abuse
Any district employee who has reason to know or suspect that a child has been injured as a result of physical, mental or emotional abuse or neglect or sexual abuse, shall promptly report the matter to the local Social Rehabilitation Service (SRS) office or to the local law enforcement agency if the SRS office is not open.

It is recommended the building administrator also be notified after the report is made.

District employees shall not contact the child's family or any other persons to determine the cause of the suspected abuse or neglect. It is not the responsibility of school employees to prove the child has been abused or neglected.

Vandalism
Employees shall report any vandalism to their immediate supervisor.

7. HEALTH

Asbestos
An asbestos management plan has been developed for the district. A copy of the management plan is available from the building principal.

Bloodborne Pathogens
The exposure control plan for bloodborne pathogens is available for review from the building principal.

All staff shall receive the training and equipment necessary to implement the plan.

Communicable Diseases
Whenever an employee has been diagnosed by a physician as having a communicable disease, the employee shall report the diagnosis and nature of the disease to the superintendent so a proper report may be made as required by statute.

An employee afflicted with a communicable disease dangerous to the public health shall be required to withdraw from active employment for the duration of the illness in order to give maximum health protection to other district employees and to students.

The employee shall be allowed to return to duty upon termination of the illness, when authorized in writing by a physician.

The board reserves the right to require a written statement from the employee's physician indicating the employee is free from all communicable disease symptoms.

Health Examinations

Custodians, maintenance personnel, teacher aides, secretaries, paraprofessionals, clerks, food service workers and others who come into regular contact with students shall complete health examinations as required by law.

As a condition to entering employment, new employees in any of these categories in the district are required to complete a physical examination at the time of employment with the district. The employee must present a district-approved form, completed by a health care professional, to the clerk that states "that there is no evidence of physical condition that would conflict with the health, safety, or welfare of the pupils; and that freedom from tuberculosis has been established. If at any time there is a reasonable cause to believe any employee is suffering from an illness detrimental to the health of the pupils, the school board may require a new certificate of health." (K.S.A. 72-6266)

The board reserves the right to have any employee examined at any time by a physician of the board's choice to determine if the employee is able to fulfill and perform the obligations of employment and to abide by and implement the policies and rules of the board. The costs of any examination required will be borne by the board.

Medications, Administering

The supervision of any medications shall be in strict compliance with the rules and regulations of the board. District employees may not dispense or administer any medications, including prescription and non-prescription drugs, to students except as outlined in board policy.

Hazardous Waste

When hazardous waste material is produced in a class, or otherwise located in the district, its disposal shall be in accordance with state and federal laws, rules and regulations.

No employee shall bring hazardous material to school without the prior approval of the supervisor. Such material shall be in an appropriate container and properly labeled.

If an employee discovers waste material that is, or may be, hazardous, he/she should notify his/her supervisor immediately.

Hazardous wastes include, but are not limited to, wastes that are flammable, corrosive, infectious, highly reactive or toxic.

Hazardous waste must be placed in an appropriate container affixed with a hazardous waste label that lists the specific contents.

Unlabeled containers whose contents are undetermined, which may contain hazardous substances, shall not be put in trash containers.

All hazardous wastes must be properly labeled and stored appropriately until they can be disposed of properly. Placing them in trash containers or the sewer system is not an acceptable disposal method.

Pest Control

The district periodically applies pesticides inside buildings. Information regarding the application of pesticides is available from the head custodian.

8. SAFETY AND SECURITY

Emergency Closings
When the superintendent decides the weather threatens the safety of students and employees, he/she will notify the radio/TV station to broadcast a school closing announcement.

Safety Practices
All employees shall engage in safe lifting, climbing and carrying practices. Employees shall ask for assistance when needed.

Security
Any district employee who believes any of the following has occurred at school, on school property or at a school-sponsored activity shall immediately report this information to local law enforcement:

- an act which constitutes the commission of a felony or a misdemeanor; or
- an act which involves the possession, use or disposal of explosives, forearms or other weapons as defined in current law.

It is recommended the building administrator also be notified.

Securing Work Area
Employees are expected to lock or otherwise secure any files, records, safes, tools, vehicles or other district equipment at the close of each work day and other appropriate times.

Computers
Use of or access to district computers and computer software is limited to district employees and students. Use of computers is for the performance of official and approved assignments only. Use of district computer equipment or software for personal projects is prohibited without prior permission of the employee's supervisor.

Only software purchased by the district may be loaded onto district computers. Software licensed to the district shall not be used on computers not owned by the district. District software shall not be copied for personal use.

Employees shall not use electronic communications, including e-mail and the internet, to harass staff, students, or other individuals.

No Right to Privacy
Employees shall have no expectation of privacy or restricted access to any information generated during the course of their official duties, or entered in any district computers. Employees waive any right to privacy in e-mail messages and consent to the access and disclosure of e-mail messages by authorized employees.

Employees shall only use passwords or other encoding or security mechanisms as assigned by the district computer system(s) administrator or other officials designated by the board. The use of a password does not affect the employer's right to monitor. All forms of electronic communications are monitored by the employer to ensure the systems are only being used for official purposes.

Ownership
Computer materials or devices created as part of any assigned district responsibility undertaken on school time shall be the property of the district. The board's rules governing ownership of employee-produced computer materials are on file with the clerk and are available upon request.

Secure Files
All employees must secure files containing confidential student information.

Internet
Inappropriate use and/or transmission of any material in violation of any United States or state regulation, is prohibited. This includes, but is not limited to, copyrighted material, threatening or obscene material, or material protected by a trade secret.

Copying and Duplicating
The copyright laws of the United States make it illegal for anyone to duplicate copyrighted materials without permission. Severe penalties are provided for unauthorized copying of all materials covered by the act unless the copying falls within the bounds of the "fair use" doctrine. Any duplication of copyrighted materials by district employees must be done with permission of the copyright holder or within the bounds of "fair use", as set forth in board policy.

Specific regulations concerning fair use are posted near district copy machines.

Keys
The building principal is responsible for issuing keys and maintaining a current and accurate list of all people who have been issued keys. No keys shall be duplicated without permission.

Keys should be turned in to the appropriate supervisor when an employee is no longer employed by the district or is assigned to another building.

Keys shall not be loaned to anyone. Any lost keys shall be reported immediately to the principal so measures may be taken to maintain safety and security and to protect district property.

9. EQUIPMENT AND SUPPLIES

Appropriate Use of Equipment and Supplies
Use of equipment and supplies is for the performance of official and approved assignments only. Use of district equipment or supplies for personal projects is prohibited without prior permission of the employee's supervisor.

APPENDIX A

Report to Local Law Enforcement

USD #325

Pursuant to K.S.A. 72-6143, the administrator or other school employee whose signature appears below is reporting the following crimes.

{Briefly describe each incident and the person/s involved}

Date	School/Location	Student/s or Person/s Involved	Brief Description
1.			
2.			
3.			
4.			
5.			

School Districts are required by Federal Law and K.S.A. 72-6311 to protect the privacy rights of students under the age of 18.

Signed: _____

Administrator or other school employee.

cc: Superintendent of Schools, USD #325
Student/s file

APPENDIX B

SCHOOL EQUIPMENT POLICY

This policy is intended to clarify the position of the Board of Education concerning personal use of district property or equipment. Personal use of district property or equipment is not allowed with the exception that the building principal may approve specific requests if it is deemed justifiable given the particular conditions of the request.

In addition, staff and student safety requires that some procedure be in place for hand tools allowing for safe, responsible use. Staff members who would like to use a hand tool must fill out a form and give it to the district employee responsible for the area in which the tool is kept. The form may be delivered by the staff member or a student. The district employee will then issue the hand tool and file the request form until the tool is returned. The tool will be used by the staff member or by a student who has been instructed in the proper use of the tool. If a student uses the tool, the staff member is responsible for the safety of the student.

If other equipment besides hand tools is requested, the request should go directly to the principal. All questions should be directed to the principal. No equipment is allowed off grounds unless related to employment responsibilities or specifically approved by the principal.

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APPENDIX C

STAFF RUP Print Name _____Building _____ Assignment_____

USD #325 Communication Technology Responsible Use Policy: Staff

I will follow school rules and policies while I am using all forms of technology.

I will not use any electronic device to harass, threaten or bully others.

I will not view, send or display inappropriate messages or pictures. This includes material that promotes violence, discrimination, illegal activities, or is sexually explicit. If I encounter inappropriate material, I will immediately exit and inform my building supervisor or tech assistant.

I will model responsible use of all technology carefully and not damage, change or tamper with the hardware, pre-installed or district provided software, settings, or the network.

I will model appropriate use of copyright, respecting copyright laws and citing sources in my work.

I will not intentionally introduce a virus or cause a denial of service to other users. I will not link the school website to inappropriate websites.

I will only print the minimum number of pages necessary for my duties.

I will use the computer, the Internet, email and other software in support of teaching and learning. I understand all such use may be monitored.

I will use only my passwords and will not share them. I will not trespass in the files or folders of others.

I will use my files and folders on the server, on my device or in the Cloud responsibly. I understand my files and electronic devices issued by the district are not private but subject to viewing, monitoring and/or archiving.

I will follow and model safe Internet practices.

I will follow recommended practices for care, maintenance and safekeeping of all district devices.

I will report any loss or damages immediately and understand I am responsible for the cost of repairs.

STAFF RUP Print Name _____Building _____ Assignment_____

USD #325 provides communication technologies to its staff and students in support of teaching and learning. Some material accessible via the Internet may contain items that are illegal, defamatory, offensive, or of no educational value in a school setting. USD 325 maintains devices as per federal requirements with respect to filtering of Internet and network usage.

If the guidelines set forth in the responsible use policy are violated, a staff member may lose access to communication technologies and may face disciplinary consequences and legal action. We require staff members to read, accept and sign these policies for responsible use of communication technologies.

Staff Signature_____ **Date**_____

Administrator Signature_____ **Date**_____

Table of Applicable Replacement/Repair Charges:

Laptop Charger	**Brick 30W: $49.00** **Cable USB C: $19.00**
Laptop Damage	**Based on cost of repairs and incident**
iPad Screen	**$75.00**
iPad Charger	**Brick $20.00** **Cord $20.00** **Both Brick and Cord: $40.00**
iPad Case	**$25.00**
iPad Internal Damage: Anything requiring screen removal to fix such as volume button, home button, etc.	**$30.00+** **depending on damage**

APPENDIX D

PERSONAL PROTECTIVE EQUIPMENT PLAN

I. Purpose

This Personal Protective Equipment Plan is necessary to provide a safe and healthful workplace for our employees, and to comply with Occupational Safety and Health administration (OSHA) regulations 29 CFR 1910.132. The purpose of this plan is to ensure the safety and health of our employees using personal protective equipment.

II. General Program Management

A. Responsibility

The Safety Officer will assess the workplace to determine if hazards are present, or likely to be present, which will necessitate the use of personal protective equipment. All employees have the responsibility to comply with company policies on the use of personal protective equipment.

B. Program Review and Update

The personal protective equipment plan will be reviewed or updated whenever there is new equipment or personnel changes that might affect the plan.

III. Methods of Compliance

A. Hazard Assessment and Equipment Selection

When hazards are present, or likely to be present, the Safety Officer will:

-Select and have each affected employee use the types of personal protective equipment that will protect them from the hazards identified in the hazard assessment.

-Communicate selection decisions to each affected employee.

-Select Personal Protective Equipment that properly fits each affected employee.

Damaged and defective personal protective equipment shall not be used.

B. Training

The Safety Officer will provide training to each employee who is required to use personal protective equipment. Each employee will be trained to know at least the following:-When personal protective equipment is necessary;

-What personal protective equipment is necessary;

-How to properly put on, take off, adjust, and wear the personal protective equipment;

-The limitations of the personal protective equipment;

-The proper care, maintenance, useful life and disposal of personal protective equipment.

When the Safety Officer has reason to believe that any affected employee, who has already been trained, does not have the understanding and skill required to use the personal protective equipment, the Safety Officer will retrain such employee.

Circumstances where retraining is required include, but are not limited to:

-Changes in the workplace render the previous training obsolete or,

-Changes in the types of personal protective equipment to be used that render previous training obsolete or,

-Inadequacies in an affected employee's knowledge or, usage of the equipment.

Each affected employee will demonstrate an understanding of the training and the ability to use personal protective equipment properly, before being allowed to perform work requiring the use of personal protective equipment.

HAZARD COMMUNICATION PROGRAM

I. PURPOSE

In order to protect our employees and comply with 29 CFR 1910.1200 the Hazard Communication Standard, the following written Hazard Communication Program has been established for our company. Under this program, you will be informed of the contents of the Hazard Communication Standard, the hazardous properties of chemicals with which you work, safe handling procedures, and measures to take to protect yourself from these chemicals. You will also be informed of the hazards associated with non-routine tasks, such as the cleaning in confined spaces, and the hazards associated with chemicals in unlabeled pipes.

II. GENERAL PROGRAM MANAGEMENT

A. Responsibility

The Safety Officer has responsibility for this program. The Safety Officer will review and update the program, as necessary

B. Program Review and Update

The Hazard Communication Program will be reevaluated as necessary. The MSDS's will be renewed as necessary in order to assure that all chemicals used are current. Training and reviewing of the program will also be done under these circumstances:

1) for employees before they are sent to their work station

2) when new chemicals or hazardous materials are introduced into work areas.

III. METHODS OF COMPLIANCE

A. List of Hazardous Chemicals

The Safety Officer will keep lists of all hazardous chemicals and related work practices used in the facility, and will update the lists as necessary. (When new chemicals or MSDS sheets are received). The lists of chemicals identifies all of the chemicals used in the work areas. Each list also identifies the corresponding MSDS for each chemical. The lists of these chemicals will be maintained by, and is available from the Safety Officer.

B. Container Labeling

The supervisor in each section will verify that all containers received for use will:

1) Be clearly labeled as to the contents,
2) Note the appropriate hazard warning,
3) List the name and address of the manufacturer.

The Safety Officer will refer to the corresponding MSDS to assist in verifying label information. Containers that are shipped from the plant will be checked by the supervisor of shipping and receiving to make sure all containers are properly labeled.

The Safety Officer will ensure that all secondary containers are labeled with either an extra copy of the original manufacturer's label or with the "central stores" generic labels. For help with labeling, please see the Safety Officer. The Safety Officer will review and update the company labeling system as needed.

C. Material Safety Data Sheets

The Safety Officer will be responsible for obtaining and maintaining the data sheet system for the company. The Safety Officer will review incoming Material Safety Data Sheets for new health or safety information. He will see that any new information is included in the program and that the new information is passed on to the affected employees.

MSDS's will be available to all employees in their work areas for review during each work shift. If MSDS's are not available or new chemicals in use do not have MSDS's, immediately contact the Safety Officer.

D. Employee Training and Information

The Safety Officer is responsible for the employee training program. They will ensure that all elements specified below are carried out.

Prior to starting work each new employee of this company will attend a health and safety orientation and will receive information and training on the following:

1) An overview of the requirements contained in the Hazard Communication Standard,
2) Chemicals present in their workplace operations,
3) Location and availability of our written hazard program,
4) Physical and health effects of the hazardous chemicals,
5) Methods and observation techniques used to determine the presence or release of hazardous chemicals in the work area,
6) How to lessen or prevent exposure to these chemicals through usage of control/work practices and personal protective equipment,
7) Steps the company has taken to lessen or prevent exposure to these chemicals,
8) How to read labels and review MSDS's to obtain appropriate hazard information,
9) And the location of MSDS file and hazardous chemical list.

Prior to a new chemical hazard being introduced into any section of this company, each employee of that section will be given information as outlined above. The Safety Officer is responsible for ensuring that MSDS on the new chemical(s) are available.

E. Hazardous Non-Routine Tasks

Any maintenance, or other infrequent work shall be reviewed by the Safety Officer for potential exposure to hazardous chemicals or other safety problems. (e.g., cleaning tanks, entering confined spaces, etc.) Permits shall be required for working on energized systems, and valve closures. Appropriate lock-out and tag-out procedures shall be followed. (See Facility's Lock-out Tag-out Policy)

F. Informing Contractors

It is the responsibility of the Safety Officer to provide contractors and employees the following information:

1) hazardous chemicals to which they may be exposed to while on the job site,
2) precautions the employees may take to lessen the possibility of exposure by usage of protective measures.

The Safety Officer will be responsible for contacting each contractor, before work is started in the company, to gather and disseminate any information concerning chemical hazards that the contractor is bringing to our workplace.

LOCKOUT-TAGOUT PROGRAM

I. Purpose

This procedure establishes requirements for the lockout of energy isolating devices. It should be used to ensure that the machine or piece of equipment is isolated from all potentially hazardous energy and locked out and freed of all residual or accumulated energy before employees perform any servicing or maintenance activities where the unexpected energization, start-up or release of stored energy could cause injury.

II. General Program Management

A. Responsibility

1. Management
2. Qualified Employees
3. Authorized Employees
4. Affected Employees

It is the responsibility of management to approve all hazardous energy control procedures. Approvals can be given by Safety Officer.

Authorized employees shall be knowledgeable about the lockout procedure for each piece of equipment, the type and magnitude of the energy that each piece of equipment utilizes, and the hazards of the energy.

Affected employees and any other employees whose work operations are or may be in the area, will be knowledgeable about the purpose and the use of the energy control procedure and the prohibitions against attempting to restart the equipment during lockout.

Qualified employees shall be knowledgeable about electrical energy hazards and lockout procedures. Only qualified employees may lockout or tagout electrical equipment.

B. Program Review and Update

To keep our general program up-to-date, it is reviewed and updated as necessary and whenever new equipment is put into service.

III. Methods Of Compliance

A. Lockout or Tagout System Procedure

The authorized employee (in conjunction with the qualified employee if necessary) shall perform the lockout procedure for the equipment being serviced.

B. Outside Service or Contractor Personnel

Outside personnel or contractors that may be involved with or affected by the energy control procedures must submit their energy control procedures to the Safety Officer. Affected employees of this company will be trained and notified of the proper procedures by the Safety Officer.

C. Testing or Positioning of Equipment During Lockout

In situations in which lockout devices must be temporarily removed from the energy isolating device because the machine or equipment must be energized to test or for positioning, the authorized employee shall consult the Energy Control Procedure and follow the sequence of actions listed for Restoring Equipment to Service. Once the testing or positioning is complete and before servicing or maintenance is continued, deenergization following the steps on the Energy Control Procedure shall be re-instituted.

IV. Information And Training

Training will be given on lockout by the Safety Officer.

Authorized Employees will be trained on the following:

1. Recognition of applicable hazardous energy sources.
2. The type and magnitude of the energy available in the workplace.
3. The method and means necessary for energy isolation and control.

Affected Employees will be trained on the following:

1. The purpose and use of the energy control procedure.

Other Employees whose work operations are or may be in an area where energy control procedures may be utilized shall be instructed about the procedure and the prohibitions against attempting start-up of any locked out equipment.

Qualified employees (those permitted to work on or near exposed energized parts) shall, at a minimum, be trained in and familiar with:

1. The electrical energy control procedure.
2. The skills and techniques necessary to distinguish exposed live parts from other parts of electrical equipment.
3. The skills and techniques necessary to determine the nominal voltage of exposed live parts.
4. The appropriate clearance distances specified in 29 CFR 1910.333 (c) and the corresponding voltages to which the qualified person will be exposed.

Authorized and qualified employees will be given training prior to any initial involvement in the lockout procedures. Affected employees will be given training at the time of hiring.

Retraining will be given whenever there is a change in job assignment, a change in equipment or processes that would create a new hazard, or whenever a change would occur in the company's hazardous energy control procedures.

V. Energy Control Procedure

A. Scope

This procedure establishes performance requirements for the control of energy during servicing and/or maintenance of machinery and equipment at our company.

B. Purpose

This procedure shall be used to ensure that the machine or equipment is stopped, isolated from all potentially hazardous energy sources, and locked out before employees perform any servicing or maintenance where the unexpected energization or start-up of the machine or equipment or release of stored energy could cause injury.

C. Compliance With This Program

All employees are required to comply with the restrictions and limitations imposed upon them during the use of lockout. The authorized employees are required to perform the lockout in accordance with this procedure. All employees, upon observing a machine or piece of equipment which is locked out to perform servicing or maintenance shall not attempt to start, energize, or use that machine or equipment.

An authorized employee is a person who locks out or tags out machines or equipment in order to perform servicing or maintenance on that machine or equipment; this could include an "affected"

employee if that employee's duties include performing servicing or maintenance covered under this procedure. An affected employee is an employee whose job requires him/her to operate or use a machine in which servicing or maintenance is being performed under lockout or tagout, or whose job requires him/her to work in an area in which such servicing or maintenance are being performed.

D. Sequence of Lockout

1) Notify all affected employees that servicing or maintenance is required on a machine or piece of equipment and that the machine or equipment must be shut down and locked out to perform the servicing or maintenance.

2) The authorized employee shall refer to the company's detailed Energy Control Procedure for each type of machine or piece of equipment to be locked out; to identify the type and magnitude of the energy that the machine or equipment utilizes, to understand the hazards of the energy, to know the methods to control the energy. Our company shall have trained the authorized employee to enable him/her to understand the hazards and know the methods to control the energy.

3) If the machine or equipment is operating, shut it down by the normal stopping procedure (for example: depress the stop button, open switch, close valve, etc. Remember to include the specific normal stopping procedure for each machine or piece of equipment of the Energy Control Procedure.).

4) De-activate the energy isolating device(s) so that the machine or equipment is isolated from the energy source(s).

5) Lock/Tag out the energy isolating device(s) with assigned individual lock/tag(s).

6) Stored or residual energy (such as that in capacitors, springs, elevated machine members, rotating flywheels, hydraulic systems, and air, gas, steam, or water pressure, etc.) must be dissipated or restrained by methods such as grounding, repositioning, blocking, bleeding down, etc.

7) Ensure that the equipment is disconnected from the energy source(s) by first checking that no personnel are exposed, then verify the isolation of the equipment by operating the push button or other normal operating control(s) or by testing to make certain the equipment will not operate. Caution: Return operating control(s) to neutral or "off" position after verifying the isolation of the equipment.

8) For deenergized conductors or parts of electrical equipment only: If a lock cannot be applied, a tag may be used by the qualified person without a lock if it is supplemented by at least additional safety measure that provides a level of safety equivalent to that obtained by the use of a lock. List the safety measures to be used, for example, the removal of an isolating circuit element, blocking of a controlling switch, or opening of an extra disconnecting device.

9) For deenergized conductors or parts of electrical equipment only: A qualified person (one who is familiar with the construction and operation of the equipment and the electrical hazards involved) shall use test equipment to test the circuit elements and electrical parts of equipment to which employees will be exposed and shall verify that the circuit elements and equipment parts are deenergized. The test shall also determine if any energized condition exists as a result of inadvertently induced voltage or unrelated voltage backfeed even though specific parts of the circuit have been deenergized and presumed to be safe. If the circuit to be tested is over 600 volts,

nominal, the test equipment shall be checked for proper operation immediately before and immediately after this test. (List the qualified person and the testing instrument to be used.)

10) The machine or equipment is now locked out.

E. Restoring Equipment To Service

When the servicing or maintenance is completed and the machine or equipment is ready to return to normal operating condition, the following steps shall be taken.

1) Check the machine or equipment and the immediate area around the machine to ensure that nonessential items have been removed and that the machine or equipment components are operationally intact.

2) Check the work area to ensure that all employees have been safely positioned or removed from the area.

3) Verify that the controls are in neutral.

4) Remove the lockout devices and reenergize the machine or equipment.

Note: The removal of some forms of blocking may require reenergization of the machine before safe removal.

5) Notify affected employees that the servicing or maintenance is completed and the machine or equipment is ready for used.

F. AUTHORIZED REMOVAL OF LOCKS AND TAGS

MANAGEMENT IS AUTHORIZED TO MAKE EMERGENCY REMOVAL
OF LOCKS/TAGS ONLY UNDER THE FOLLOWING CIRCUMSTANCE.

1. receipt of a request from appropriate work area supervisor stating reason the authorized employee is unable to re-move the locks/tags.
2. management or the supervisor is responsible for making certain all of the requirements for re-energization of the system are followed.
3. verification by management that the authorized employee who implemented the procedure is not at the facility.
4. management has taken all reasonable steps to contact the authorized employee to notify them that their locks or tags have been removed.

Do not tamper with any locks or tags that are in place. If you feel the locks or tags have been left by mistake, notify your supervisor <u>immediately.</u> The supervisor will take the appropriate steps to notify the authorized employee or management, that locks or tags are in place.

SCISSOR LIFT SAFETY PROGRAM

Purpose
The purpose of this Program is to ensure the safe operation of this equipment and to establish performance and training requirements for equipment operation.

Scope
This Program applies to all scissor lifts in use at this facility.

Roles and Responsibilities

Maintenance Manager
- Responsible for the implementation of this Program.
- Maintains the written program and employee training records.
- Has training and knowledge on how to operate the scissor lift and will provide instructional training as needed.
- Reviews and ensures understanding of this program.
- Ensures employees comply with all provisions of this program.
- Conducts instructional and operational training.
- Oversees the servicing and return to service of scissor lifts in need of repairs.
- Manages the paper records associated with the scissor lift inspections, including copies of blank inspection forms.
- Reviews the inspection forms for completeness and accuracy.
- Communicates with operators any problems noted with the completion of the inspection forms.
- Keeps on file the completed inspection forms for the previous month.

General Policies and Procedures
- Only trained and certified employees are permitted to operate scissor lifts. Employees from a Temporary Agency may NOT operate our scissor lifts. Contractor use of our scissor lifts is addressed in the Contractor Safety Program.
- Any person operating the controls of the scissor lift or occupying the platform must be familiar with the safety and operating procedures of the equipment.
- The scissor lift is not insulated. Maintain safe clearances from electrical power lines and energized equipment.
- Check the work area for overhead obstructions or other possible hazards. Use a hard hat or bump cap when an overhead hazard exists.
- Be aware of a potential crushing hazard when grasping the platform guardrail.
- Stay clear of descending platform.
- Do not lower the platform unless the area below is clear of personnel and obstructions.
- No safety harness will be required as long as:
    - Work being done is limited to the perimeter defined by the guard rail. No worker will lean out or extend themselves beyond the limit of the guardrail at any time.

    - No worker will step on the guard rails to increase their height or reach.
- Accidents involving injury, damage to property, product, or equipment, must be reported immediately to your supervisor. Supervisors will document all incidents in accordance with facility procedures.
- Do not operate the scissor lift while under the influence of drugs or alcohol, or if severe mental and/or physical strain impairs your ability to safely operate the vehicle.
- Employees observed operating the scissor lift in an unsafe manner will be subject to disciplinary action up to and including termination.

Operation & Traveling

- Do not exceed rated platform capacity.
- Do not drive near drop-offs, holes or loading docks.
- Do not move the scissor lift while the platform is raised.
- Do not raise the platform on a slope or drive onto a slope when elevated.
- Do not raise the platform or drive onto uneven or soft surfaces.
- Do not use without guardrails, mid-rails, chain, or a bar in place.
- Do not sit or stand on guardrails. This is strictly prohibited. If access to work cannot be achieved safely and within the confines of the guardrail on the platform, notify your supervisor immediately for alternative solutions.
- Do not push off or pull toward any object outside the platform.
- Do not use the scissor lift to lift material or equipment. The scissor lift is intended to lift personnel and tools only.
- Do not override safety devices.
- Do not raise the platform in windy or gusty conditions if used outside.
- Do not use if the platform is not working properly or if any part is damaged, worn or missing. Report all equipment trouble and unsafe conditions to your supervisor.
- Do not use a ladder, scaffolding, or other devices to increase size of working height of platform.
- Do not use with damaged tires.
- Do not attach ropes or chains to guardrails or use as a crane.
- Do not exit the platform while it is raised. If a power failure occurs, have ground personnel activate manual lowering valve.
- When operating a scissor lift in a boiler room, you must have a spotter to ensure the scissor lift does not impact or strike equipment, piping, and valves. This also applies to contractors using a scissor lift in these areas.

Inspection and Maintenance

- The maintenance schedule established by the manufacturer of the scissor lift should be followed.
- Be sure that the Operator's Manual is complete, legible and in the storage container on the scissor lift.
- Be sure that all decals are legible and in place.
- An inspection of the scissor lift must be completed and documented before each shift by using the Scissor Lift Inspection Form. If a scissor lift is not used during a shift, the scissor lift does not need to undergo an inspection during that shift. If any unsafe conditions exist, the scissor lift shall be removed from service; the operator

shall remove the keys and place an “Out of Service” tag near the operator control panel.
- Completed inspection forms shall be forwarded to the Shipping & Receiving Manager.

Storage after Use
- Select a safe storage location that has a firm, level surface, weather protected, clear of obstruction and traffic.
- Pull the base lowering handle to lower the base until all four foot pads are in firm contact with the ground.
- Push the emergency stop button.
- Turn the key to the “off” position and remove the key to secure from unauthorized use.
- Recharge the battery.

Battery Charging & Servicing
- Charge the battery in a well-ventilated area.
- Use proper AC input voltage for charging as indicated on the charger.
- Only use an authorized battery and charger as indicated in the Operator’s Manual.
- The following Personal Protective Equipment (PPE) must be worn while servicing the battery due to the potential for contact with battery acid: green nitrile rubber gloves, rubber apron, goggles and a face shield.

Training
Prior to independently operating a scissor lift, an employee will successfully complete the required training program. Operator training and an evaluation will be conducted by persons who have knowledge, training and experience to train scissor lift operators and evaluate their competence. Training will consist of a combination of formal instruction (discussion and written material), practical training (demonstration and practical exercises) and evaluation of performance. If a different make and model of scissor lift is obtained from a rental company, then the rental company must provide the operational training.

Scissor Lift Training Requirements
- Review the following sections of this written program: General Policies and Procedures, Operation & Traveling, Inspection & Maintenance, Storage after Use and Battery Charging & Servicing.
- Review of the Pre-Operation Safety Checklist.

Refresher Training
An employee will receive refresher training when:
- The employee is observed operating the scissor lift in an unsafe manner.
- The employee is involved in an accident or near-miss incident while operating the scissor lift.
- The employee is assigned to operate a scissor lift different than the one trained to operate.

- There is a change in the conditions in the work place that would affect the safe operation of the scissor lift.

In the event of an accident or near-miss incident involving a scissor lift, an incident investigation must occur. If it is determined that the employee operated the scissor lift in an unsafe manner, this may result in disciplinary action up to and including termination.

Training Frequency
The employee's operation of a scissor lift should be re-evaluated at least once every three years.

Recordkeeping
- The Maintenance Manager maintains on file the completed inspection forms for the previous month.

References

Operator's Manual

Scissor Lift Inspection Form

Department: _____ Shift: _____ Week of: _____

Lift Number: _____ Engine Hour Meter (record once/week) _____

Inspection must be completed prior to using the scissor lift. Only one inspection is required per shift when in use.

Operator: Place initials in appropriate boxes only if that item is working properly. If not, leave it blank and write any problems in the box below and take it to your supervisor. Have a qualified mechanic correct all problems before operating the scissor lift.

Inspected Area	Mon	Tues	Wed	Thur	Fri	Sat	Sun
Leaks — Hydraulic Oil, Battery, etc.							
Electrical Components – Condition of Wiring and Cables							
Tires — Inflation, Nicks and Cuts							
Hydraulic Hoses, Mast Chains & Stops – Condition							
Guards Rails, Gate & Chains – Condition							
Battery Indicator – Working Properly							
Decals & Rated Load Capacity – Legible and in Place							
Steering — Operates Smoothly							
Gears - Forward, Neutral, Reverse — Operates Smoothly							
Hoist Controls — Operates Smoothly							
Platform Clean – No Trash, Tools, Misc.							
Gauges / Controls – Working Properly							
Grounding Chain Attached							
Hour Meter – Working Properly							

Notes: Report damage to Supervisor before using the lift. Record date damage is noted; describe damage and actions taken for repair.

Supervisor's Printed Name: _____ Date: _____

Supervisor's Signature: _____

Return completed sheet to your supervisor at the end of the week.